



Order under Section 77(8) Residential Tenancies Act, 2006

Citation: Nguyen v De Lang, 2025 ONLTB 94273

Date: 2025-12-23

File Number: LTB-L-059814-25-SA-RV

In the matter of: Upper Unit, 5 Highbourne Rd
Toronto ON M5P2J1

Between:	Ha An Pham Nguyen	Landlord
	and	
	Jacqueline De Lang	Tenant

Review Order

Ha An Pham Nguyen (the 'Landlord') applied for an order to terminate the tenancy and evict Jacqueline De Lang (the 'Tenant') because the Tenant entered into an agreement to terminate the tenancy.

The Landlord's application was resolved by order LTB-L-059814-25, issued on July 28, 2025. This order was issued without a hearing being held.

The Tenant filed a motion to set aside order LTB-L-059814-25.

The motion was resolved by order LTB-L-059814-25-SA, issued on September 9, 2025.

On September 13, 2025, the Tenant request a review of the motion order. The review was granted by order LTB-L-059814-25-RV-IN2 and the new hearing was scheduled to another available date.

A new hearing of the motion was held by videoconference on November 24, 2025.

The Landlord's Legal Representative, Nora Marku, the Landlord, the Tenant's Legal Representatives, Kathleen Lovett and Bill Burd, and the Tenant attended the hearing.

Determinations:

1. The Landlord and Tenant entered into an agreement to terminate the tenancy as of July 31, 2025.
2. The Tenant submitted that the Landlord had attempted to broker a deal with the Tenant whereby the Tenant would vacate as opposed to exercise her right to a hearing on the N12

notice of termination. She submits that the Landlord deliberately withheld pertinent information during the negotiation that resulted in the settlement agreement.

3. The Landlord's position is that the parties voluntarily entered into an agreement to terminate the tenancy, which included consideration of a substantial payment by the Landlord to the Tenant, which the Landlord has complied with.
4. It was undisputed that in June 2024, the Landlord's former paralegal, Reena Bassar, had sent her an N12 notice of termination indicating that the purchaser required the rental unit for themselves and their parents. The Landlord's paralegal also threatened to evict the Tenant for what she alleged is an illegal business out of the rental unit if necessary.
5. The N12 notice of termination had a termination date of August 31, 2024. The Tenant did not vacate the rental unit on or before the termination date in the notice.
6. The Tenant testified that she signed the N11 notice of termination because she was told that the Landlord and her parents would move in and take control of the house. She understood that one of them would move into her unit and the other would move into the lower unit. It was undisputed that the Tenant had scheduled movers in anticipation of her move out date. The Tenant testified that shortly before she was scheduled to move out, she learned that the Landlord had submitted a planning application to convert the residential complex from a duplex to a four-plex.
7. The Landlord does not dispute that her intention is to add two more units to the residential complex and that she had commenced the process for that. She testified that she plans to make the property a generational home for herself, her parents, her sibling and, in the future, other family members. She testified that initially, she was going to just fix up the basement for her brother but then they decided to expand the plan to give her parents more privacy and for her sister to move-in in the future as well. She testified that the change in plan happened some time in January 2025.
8. Although the Landlord states that she has had to delay herself and her family moving in due to the uncertainty of the situation, I find it reasonable in the circumstances to grant the Tenant's motion.
9. The N11 agreement was signed because there was an N12 notice of termination issued to the Tenant. The Tenant was not given material information to make an informed decision before signing the N11 agreement and this creates an imbalance of power. The Tenant had no intention of vacating and only signed the agreement because she was prompted to by the Landlord and their legal representative to circumvent attending the hearing to dispute the N12 notice and threatened by the Landlord's previous representative with respect to her business.
10. The Landlord also secured an immoderate gain having elected to obtain an order based on the N11 agreement rather than seek eviction by notice, utilizing the N12 Notice. Not only was it the quicker means to achieve the Landlord's preferred outcome, but she did not have to risk an adverse outcome particularly when she changed her plans for personal use to a major renovation which would result in additional units for non-eligible family members. Had the Landlord given the Tenant all material information to make an informed decision before signing the N11 agreement, the outcome would have been different.

It is ordered that:

1. The motion to set aside Order LTB-L-059814-25, issued on July 28, 2025, is granted.
2. Order LTB-L-059814-25, issued on July 28, 2025, is set aside and cannot be enforced.

December 23, 2025

Date Issued

Candace Aboussafy

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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